STATE OF ILLINOIS
CONTRACT AMENDMENT

The undersigned Agency and Vendor, Deloitte Consulting, LLP (the Parties) agree that the following shall amend the Contract referenced herein. All terms and conditions set forth in the original Contract, not amended herein, shall remain in full force and effect as written. In the event of conflict, the terms of this Amendment shall prevail.

IN WITNESS WHEREOF, the Agency and the Vendor cause this Amendment to be executed on the dates shown below by representatives authorized to bind the respective PARTIES.

VENDOR

Vendor Name: Deloitte Consulting LLP	Address: 111 S. Wacker Chicago, IL 60606
Signature:	Phone: 312-486-4483
Printed Name: Allan Kagan	Fax: 312-247-4483
Title: Principal	Email: akagan@deloitte.com
Date: September 17, 2021	

STATE OF ILLINOIS

Procuring Agency: Department of Employment Security	Phone:
Street Address: 33 S. State Street	Fax:
City, State ZIP: Chicago, IL 60603	
Official Signature:	Date: 9/21/21
Printed Name: Kristin A. Richards	
Official's Title: Acting Director	
Legal Signature:	Date:
Legal Printed Name:	
Legal's Title:	
Fiscal Signature:	Date:
Fiscal's Printed Name:	
Fiscal's Title:	

STATE USE ONLY **NOT PART OF CONTRACTUAL PROVISIONS**

PBC# N/A Project Title uFACTS System (PUA System)

Contract # 4100127387 Procurement Method (IFB, RFP, Small, etc): Covid 19 Exempt

IPB Ref. # N/A IPB Publication Date: N/A Award Code: Z

Subcontractor Utilization? ☐ Yes ☐ No ☑ Subcontractor Disclosure? ☐ Yes ☐ No ☑

Funding Source Obligation # 4100127387

CPO 33 – General Counsel Approval:

Signature Printed Name Date

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1. **CONTRACT DESCRIPTION** (including Original Purchase Order or Contract Number): 4100127387 for the Unemployment Framework for Automated Claim & Tax Services (uFACTS) system.

2. **CHANGE ORDER**: Is this amendment a change order as defined in 30 ILCS 500/1-15.12 and 720 ILCS 5/33E?

☐ Yes ☒ No

3. **DESCRIPTION OF AMENDMENT** (Check all that apply, complete blanks and explain as necessary):

3.1. The completion date will be ☐ extended, ☐ shortened or ☒ remain the same.

3.1.1. Original completion date (as revised under the 4th Amendment): 12/31/2021.

3.1.2. Revised completion date:

3.2. The method of determining compensation (e.g., hourly rate, fixed fee, etc.) will ☒ stay the same or ☐ change as follows:

3.3. The cost will be ☒ increased, ☐ decreased or ☐ remain the same.

3.3.1. Cost History:

Original cost:	$9,490,000.00
1st Amendment/Increase:	$325,000.00
2ND Amendment/Increase:	$4,550,000.00
3rd Amendment/Increase:	No cost increase
4th Amendment/Increase:	$6,377,000.00
5th Amendment/Increase:	$1,692,998.00
Revised Total:	$22,434,998.00

3.3.2. Amount of change: $1,692,998.00.

3.3.3. Revised cost: $22,434,998.00.

3.4. The supplies or services to be provided will ☐ stay the same or ☒ be changed as follows: The Vendor shall provide the supplies and services identified in Attachment A, which is attached hereto and incorporated into this 5th Amendment by reference.

3.5. Subcontractors are being ☐ added, ☐ deleted, or ☒ remain the same?

3.5.1. All contracts with the subcontractors identified above must include the Standard Certifications and Financial Disclosures and Conflicts of Interest completed and signed by the subcontractor.

3.5.2. If the annual value of any of the subcontracts is more than $50,000, then the Vendor must provide to the State the Financial Disclosures and Conflicts of Interest for that subcontractor.

3.5.3. If the subcontractor is registered in the Illinois Procurement Gateway (IPG) and the Vendor is using the subcontractor's Standard Certifications or Financial Disclosures and Conflicts of

Interest from the IPG, then the Vendor must also provide a completed Forms B for the subcontractor.

3.5.4. If at any time during the term of the Contract, Vendor adds or changes any subcontractors, Vendor will be required to promptly notify, in writing, the State Purchasing Officer or the Chief Procurement Officer of the names and addresses and the expected amount of money that each new or replaced subcontractor will receive pursuant to the Contract. Any subcontracts entered into prior to award of the Contract are done at the Vendor's and subcontractor's risk.

4. EFFECTIVE DATE OF AMENDMENT: Upon the last dated signature of the Parties.

COVID-19 PROTECTIONS: In response to the COVID-19 pandemic, Governor J.B. Pritzker issued Executive Order 2021-22 and 2021-23. These Executive Orders mandate certain contractors shall use face coverings, have COVID-19 vaccinations, or undergo testing for COVID-19 when in indoor public places, Health Care Facilities, Schools, Institutions of Higher Education, and State-owned and operated congregate facilities. Vendor shall adhere to the requirements of these Executive Orders as applied by the Agency. The Agency may also implement vaccination or testing requirements that exceed those in the Executive Orders.

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STATE OF ILLINOIS
TAXPAYER IDENTIFICATION NUMBER

I certify that:

The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and

I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and

I am a U.S. person (including a U.S. resident alien).

- If you are an individual, enter your name and SSN as it appears on your Social Security Card.
- If you are a sole proprietor, enter the owner's name on the name line followed by the name of the business and the owner's SSN or EIN.
- If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's name on the name line and the D/B/A on the business name line and enter the owner's SSN or EIN.
- If the LLC is a corporation or partnership, enter the entity's business name and EIN and for corporations, attach IRS acceptance letter (CP261 or CP277).
- For all other entities, enter the name of the entity as used to apply for the entity's EIN and the EIN.

Name: Allan Kagan

Business Name: Deloitte Consulting LLP

Taxpayer Identification Number:

Social Security Number: Click here to enter text.

or

Employer Identification Number : 06-1454513

Legal Status (check one):

☐ Individual	☐ Governmental
☐ Sole Proprietor	☐ Nonresident alien
☐ Partnership	☐ Estate or trust
☐ Legal Services Corporation	☐ Pharmacy (Non-Corp.)
☐ Tax-exempt	☐ Pharmacy/Funeral Home/Cemetery (Corp.)
☐ Corporation providing or billing medical and/or health care services	☒ Limited Liability Company (select applicable tax classification)
☐ Corporation NOT providing or billing medical and/or health care services	☐ C = corporation
	☒ P = partnership

Signature of Authorized Representative: _____

Date: September 17, 2021

Attachment A

Deloitte PUA Contract #4100127387

Proposed Amendment

Background:

Contract amendment 1 was put into place to extend the contract to June 30, 2021. This amendment reduced the support level from 20 FTEs to 13 FTEs for the second half of FY21. After executing the amendment new Federal legislation (Continued Assistance Act, signed 12/27/20; American Rescue Plan Act, signed 3/11/2021) required continuing changes to PUA for the six-month period. Although it was not documented in writing, DES and Deloitte agreed to keep the support level of 20 FTEs until necessary changes were completed. By extending the active period for PUA Deloitte also had increased hosting costs.

From January 1, 2021 through June 30, 2021, the additional costs incurred for the 7 FTEs and increased hosting was $1,692,998. On a monthly basis this breaks down to $282,166.33.

During this time frame: Change requests handled by the additional level of support included:

- Issue 81 – increase number of PUA weeks available to claimants to 46 per CAA
- Issues 268 and 269 – extend PUA program operations through April 3, 2021
- Issues 293 and 294 – increase number of PUA weeks available to claimants to 57 per ARPA
- Issues 311 and 347 – changes for the initial phase to implement waiver of recovery of PUA overpayments per CAA
- Issue 329 – changes associated with Illinois triggering off of the HUP
- Issue 330 – changes required due to increased number of PUA weeks to 57 per ARPA
- Issues 350 and 354 – changes associated with PUA being extended through September 4, 2021 per ARPA
- Issue 414 – update to Employment Evidence requirement per ARPA